

ENTERPRISE CONFIDENTIAL DOCUMENT

Non-Disclosure Agreement

Source request: Generate an NDA contract between Acme Corp and John Doe for a 12-month AI consulting engagement.

Agreement Overview

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (the "Agreement"), effective as of 29.04.05 (the "Effective Date"), is made and entered into by and between:

Acme Corp, a corporation duly organized and existing under the laws of AKSNDAIK, with its principal place of business located at KJSKJOL (hereinafter referred to as "Disclosing Party");

AND

John Doe, an individual residing at AKJSDIIOFOW[QLPD (hereinafter referred to as "Receiving Party").

Disclosing Party and Receiving Party may hereinafter be referred to individually as a "Party" and collectively as the "Parties."

RECITALS

WHEREAS, Disclosing Party possesses certain confidential, proprietary, and trade secret information related to its business, operations, and technology;

WHEREAS, Receiving Party is being engaged by Disclosing Party to provide AI consulting services for a period of twelve (12) months (the "AI Consulting Engagement");

WHEREAS, in connection with the AI Consulting Engagement, Disclosing Party may disclose or make available to Receiving Party certain Confidential Information (as defined below); and

WHEREAS, the Parties desire to protect the confidentiality of such information and to define the terms and conditions under which such information may be disclosed and used.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all non-public information, technical data, or know-how, whether commercial, financial, operational, strategic, technical, or otherwise, disclosed by Disclosing Party to Receiving Party, directly or indirectly, in writing, orally, visually, or by inspection of tangible objects, including but not limited to:

- a. Business Information: Business plans, strategies, marketing plans, financial data, pricing information, customer lists, supplier lists, employee information, and other proprietary business methods or practices.
- b. Technical Information: Proprietary software, algorithms, machine learning models, data sets, AI architectures, source code, object code, research, development activities, product specifications, designs, processes, formulas, inventions, discoveries, improvements, and other technical data.
- c. AI Project Specifics: Information related to Disclosing Party's AI projects, methodologies, tools, data pipelines, training data, model performance metrics, and any other information specifically developed for or used in the AI Consulting Engagement.
- d. Designated Information: Any information that, at the time of disclosure, is identified as confidential or proprietary by Disclosing Party, whether by legend, stamp, or other written notice, or if disclosed orally, is identified as confidential at the time of disclosure and summarized in writing within thirty (30) days thereafter.
- e. Derived Information: Any information derived from or relating to the above categories, including analyses, compilations, studies, or other documents prepared by Receiving Party that contain or reflect such information.

2. OBLIGATIONS OF RECEIVING PARTY

Receiving Party hereby agrees to:

- a. Maintain Confidentiality: Maintain strict confidentiality of all Confidential Information and not disclose, publish, or disseminate such Confidential Information to any third party without the prior written consent of Disclosing Party.

- b. Limited Use: Use the Confidential Information solely for the purpose of performing the AI Consulting Engagement for Disclosing Party (the "Purpose") and for no other purpose whatsoever.
- c. Protection Measures: Take all reasonable measures to protect the secrecy of and avoid disclosure or unauthorized use of Confidential Information, exercising at least the same degree of care as Receiving Party uses to protect its own confidential information of a similar nature, but in no event less than a reasonable degree of care.
- d. No Copying/Reverse Engineering: Not to copy, reproduce, reverse engineer, decompile, or disassemble any Confidential Information without the prior written consent of Disclosing Party, except as strictly necessary for the Purpose.

3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

The obligations of confidentiality set forth in this Agreement shall not apply to any information that Receiving Party can demonstrate:

- a. Was already publicly known or becomes publicly known through no fault of Receiving Party;
- b. Was rightfully received by Receiving Party from a third party without restriction on disclosure and without breach of any confidentiality obligation owed to Disclosing Party;
- c. Was independently developed by Receiving Party without use of or reference to Disclosing Party's Confidential Information; or
- d. Is required to be disclosed by law or court order, provided that Receiving Party (where legally permissible) gives Disclosing Party prompt prior written notice of such requirement so that Disclosing Party may seek a protective order or other appropriate remedy.

4. PERMITTED DISCLOSURES

Receiving Party may disclose Confidential Information only to those of its employees, contractors, or agents who:

- a. Have a "need to know" such information for the Purpose;
- b. Are informed of the confidential nature of the information; and
- c. Are bound by confidentiality obligations at least as restrictive as those contained in this Agreement.

Receiving Party shall be responsible for any breach of this Agreement by its employees, contractors, or agents.

5. TERM AND SURVIVAL

- a. Term of Agreement: This Agreement shall commence on the Effective Date and shall remain in full force and effect for a period of twelve (12) months, coinciding with the duration of the AI Consulting Engagement, unless terminated earlier as provided herein.
- b. Survival of Obligations: The obligations of confidentiality set forth in this Agreement shall survive the termination or expiration of this Agreement for a period of five (5) years from the date of such termination or expiration. Notwithstanding the foregoing, obligations of confidentiality with respect to any information constituting a "trade secret" under applicable law shall survive indefinitely for as long as such information remains a trade secret.

6. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

Upon the termination or expiration of the AI Consulting Engagement, or upon Disclosing Party's earlier written request, Receiving Party shall promptly:

- a. Return to Disclosing Party all Confidential Information (including all copies, reproductions, summaries, and extracts thereof) in its possession or control; or
- b. At Disclosing Party's option, destroy all such Confidential Information and certify such destruction in writing to Disclosing Party within ten (10) business days of the request.
- c. Receiving Party may retain one (1) copy of the Confidential Information for archival purposes, subject to the continuing confidentiality obligations hereunder.

7. REMEDIES

Receiving Party acknowledges that monetary damages may be an insufficient remedy for any breach of this Agreement, and that Disclosing Party would suffer irreparable harm from such a breach. Therefore, Receiving Party agrees that Disclosing Party shall be entitled to seek injunctive relief (including temporary, preliminary, and permanent injunctions) to prevent any actual or threatened breach of this Agreement, in addition to any other remedies available at law or in equity.

8. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of CHENNAI, without regard to its conflict of laws principles. The Parties agree that any action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the federal or state courts located in SKAJIJOSJDPOW.

9. GENERAL PROVISIONS

a. Entire Agreement: This Agreement constitutes the entire agreement between the Parties concerning the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written, between the Parties relating to such subject matter.

b. Amendments: No amendment, modification, or waiver of any provision of this Agreement shall be effective unless in writing and signed by authorized representatives of both Parties.

c. Severability: If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect, and the invalid or unenforceable provision shall be modified to the minimum extent necessary to make it valid and enforceable.

d. Waiver: The failure of either Party to enforce any provision of this Agreement shall not be construed as a waiver of such provision or of the right to enforce it at a later time.

e. Assignment: Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party. This Agreement shall be binding upon and inure to the benefit of the Parties and their respective successors and permitted assigns.

f. No License: Nothing in this Agreement shall be construed as granting any rights, title, interest, license, or option to Receiving Party under any patent, copyright, trade secret, trademark, or other intellectual property right of Disclosing Party, except for the limited right to use the Confidential Information solely for the Purpose as expressly set forth herein.

g. No Warranty: Disclosing Party makes no representations or warranties, express or implied, as to the accuracy, completeness, or performance of its Confidential Information. All Confidential Information is provided "AS IS," and Disclosing Party shall have no liability whatsoever to Receiving Party or any third party resulting from Receiving Party's use of the Confidential Information.

h. Relationship of Parties: The Parties are independent contractors. Nothing in this Agreement shall be construed as creating a partnership, joint venture, agency, or employment relationship between the Parties.

i. Notices: All notices, requests, demands, and other communications required or permitted under this Agreement shall be in writing and shall be deemed to have been duly given (a) when delivered personally, (b) when sent by recognized overnight courier service, (c) when sent by email with confirmation of receipt, or (d) three (3) business days after being sent by certified or registered mail, return receipt requested, postage prepaid, to the addresses first set forth above or to such other address as either Party may designate by notice to the other Party.

j. Counterparts: This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

k. Data Security: Receiving Party acknowledges that in performing the Purpose, it may have access to or process data that is confidential or sensitive. Receiving Party agrees to implement and maintain appropriate technical and organizational measures to protect Confidential Information, including any data provided by Disclosing Party, against unauthorized or unlawful processing and against accidental loss, destruction, or damage. Receiving Party shall promptly notify Disclosing Party of any actual or suspected data breach involving Disclosing Party's Confidential Information.

10. SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Non-Disclosure Agreement as of the Effective Date.

ACME CORP

By: _____

Name: _____

Title: _____

Date: _____

JOHN DOE

By: _____

Name: John Doe

Date: _____

Execution

Each party acknowledges that it has read, understood, and agreed to be bound by this Agreement.

Disclosing Party

Name:

Title:

Date:

Receiving Party

Name:

Title:

Date:

Checked required sections, tone, and formatting consistency.